

25LBCV01297 25LBCV01297

County: los-angeles

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Preliminary

Matters

Request for Judicial Notice

Defendant

asks the Court to take judicial notice of the Complaint, which is a Court

record. It is not necessary for the Court to take judicial notice of the Complaint

as it is already part of this Court's record. Nevertheless, this request is

GRANTED.

Analysis

Plaintiff's Song-Beverly

Act Claims (First through Fourth causes of action)

Plaintiff's first

four causes of action arise under the Song-Beverly Act. "The Song-Beverly Act

is a remedial statute designed to protect consumers who have purchased products

covered by an express warranty.”² (Robertson v. Fleetwood Travel Trailers of

California, Inc. (2006) 144 Cal.App.4th 785, 798.)³ The Song-Beverly

Act requires that “[e]very manufacturer of consumer goods sold in this state

and for which the manufacturer has made an express warranty shall: [¶] (1)(A)

Maintain in this state sufficient service and repair facilities reasonably

close to all areas where its consumer goods are sold to carry out the terms of

those warranties or designate and authorize in this state as service and repair

facilities independent repair or service facilities reasonably close to all

areas where its consumer goods are sold to carry out the terms of the

warranties.”⁴ (Civ. Code, § 1793.2(a).)⁵⁶⁷

For

motor vehicles specifically, “[i]f the manufacturer or its representative in

this state is unable to service or repair a new motor vehicle, as that term is

defined in paragraph (2) of subdivision (e) of Section 1793.22, to conform to

the applicable express warranties after a reasonable number of attempts, the

manufacturer shall either promptly replace the new motor vehicle in accordance

with subparagraph (A) or promptly make restitution to the buyer in accordance

with subparagraph (B).”⁸ (Civ. Code, § 1793.2(d)(2).)

A

single repair attempt for an express warranty vehicle does not trigger the

Song-Beverly Act. (Silvio v. Ford Motor Co. (2003) 109 Cal.App.4th

1205, 1207-1209 (Silvio).)

i.

COA 1: Whether Plaintiff's Express

Warranty Claim is Properly Plead

Defendant

argues that Plaintiff does not sufficiently plead the failure to repair

element of the express warranty claim as she does not allege that she brought her

Vehicle in for the repair of any problem more than once. (Mot.,

p. 6.) Defendant contends that Plaintiff merely parrots the failure to repair

element with no facts, pleading that Honda and "its representatives in this

state have been unable to service or repair the Vehicle to conform to the

applicable express warranties after a reasonable number of opportunities" (Compl.

¶ 27).

In opposition,

Plaintiff argues that the express warranty claim is adequately plead because Plaintiff

has alleged ultimate facts that she is a buyer of consumer goods (a Honda Pilot),

Honda provided a warranty, and then failed to honor that warranty. (Opp., p. 3.) Plaintiff argues that

"[d]ealerships need to submit repair information to Honda to be reimbursed for

their work. Honda keeps records of all the warranty repairs done to this

Vehicle. The Vehicle Identification Number alone is sufficient to allow Honda to review its records and prepare its defense.” (Ibid.)

In

reply, Defendant contends that Plaintiff is applying the incorrect notice

pleading standard, and that Plaintiff is in the best position to know the

factual basis for her claims—the issues involve her vehicle; the problems she

experienced while driving; the date(s) she brought it to a dealership

for repairs; the number of times she did so; whether those issues continued

afterward; and whether she paid any money out-of-pocket versus covered by

warranty. (Reply, pp. 2-3.)

Here,

Plaintiff fails to sufficiently allege her express warranty

claim. The Court agrees with Defendant that Plaintiff fails to allege the

specific defect or nonconformity at issue (referring only to “transmission defects, engine

defects, electrical defects”)

and fails to allege that she presented her vehicle to an authorized dealership

for specific nonconformities on at least two occasions during the warranty

period, or that the dealership failed to repair it after those attempts.

Plaintiff’s opposition refers to compliance with the bare “notice pleading

standards” whereby a complaint “will be upheld [against pleading

attack] so long as the pleading gives notice of the issues sufficient to enable preparation of a defense." (Opp., p. 3.) The Court cannot agree with Plaintiff that "the Vehicle Identification Number alone is sufficient to allow Honda to review its records and prepare its defense," as the legislature would have set such a bare requirement for lemon law pleadings if it intended to do so.

The

Complaint does not even make an effort to identify repair dates or any other basic information required to sustain these claims. "[A] plaintiff is required only to set forth the essential facts of his case with reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of action." (Youngman v. Nevada Irrigation District (1969) 70 Cal.2d 240, 245 (Youngman); see also Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange (2005) 132 Cal.App.4th 1076, 1099 (Doheny Park Terrace).)

While

Plaintiff claims that Defendant is in a superior position to possess information on repairs, Defendant is not the party

bringing this action and it is not Defendant's burden to allege facts sufficient to constitute a cause of action. Plaintiff is on equal footing to at least have knowledge of when and for what reason she presented the Vehicle to Defendant for repairs. Further, while Plaintiff asserts that "the Legislature recently amended the Code of Civil Procedure to impose on manufacturers a duty to provide Plaintiff with the exact information Honda claims is lacking in the Complaint," Plaintiff concedes that Honda did not opt-in to these procedures, and it is thus unclear how those procedures are relevant here. (Opp., p. 3.) Plaintiff makes only a conclusory statement that "[r]easonableness and sufficiency are not matters that can be resolved at the pleading stage—they require decision by the finder of fact," putting forth no legal authority that would prevent the Court from granting the instant Motion on the insufficient facts plead. (Opp., p. 4.)

Therefore,

the motion for judgment on the pleadings is GRANTED as to the first cause of action for breach of express warranty. The Court discusses leave to amend below.

ii.

COA 2: Whether Plaintiff's 1793.2(b) Claim

is Properly Plead

Section

1793.2, subd. (b) of the SBA provides manufacturers must commence service and

repair "within a reasonable time," and "the goods shall be serviced or repaired

so as to conform to the applicable warranties within 30 days." (Cal. Civ. Code

§ 1793.2, subd. (b).)

Defendant

argues that Plaintiff does not sufficiently plead facts for her section

1793.2(b) claim about the length of any single repair or that any repair was

not performed within thirty days or "commenced within a reasonable time."

(Mot., p. 6.)

In

opposition, Plaintiff does not address this cause of action.

In

reply, Defendant points out that Plaintiff failed to oppose the motion insofar

as it challenges the Section 1793.2(b) claim. (Reply, p. 2.)

Here,

Plaintiff does not sufficiently plead facts for her section 1793.2(b) claim.

Plaintiff makes conclusory allegations that "Defendant and its representative

failed to commence the service or repairs within a reasonable time and failed

to service or repair the Vehicle to conform to the applicable warranties within 30 days. (Complaint, ¶ 33.) Plaintiff fails to allege any facts such as the length of any single repair or that any repair was not performed within thirty days.

Therefore,

the motion for judgment on the pleadings is GRANTED as to the second cause of action for violation of 1793.2(b). The Court discusses leave to amend below.

iii.

COA 3: Whether Plaintiff's 1793.2(a)(3) Claim

is Properly Plead

A

cause of action for violation of subdivision (a)(3) of Civil Code

section 1793.2 requires a showing that the manufacturer failed

to "[m]ake available to authorized service and repair facilities

sufficient literature and replacement parts to effect repairs during the

express warranty period." (Civ. Code, § 1793.2.)

Defendant

argues that the FAC does not identify whether Honda allegedly failed to

provide service literature and/or replacement parts for their section

1793.2(a)(3) claim. (Mot., p. 7.)

In

opposition, Plaintiff does not address this cause of action.

In

reply, Defendant argues that Plaintiff's opposition is silent on this issue, so

they have thereby conceded any arguments in opposition. (Reply, p. 2.)

Here,

Plaintiff does not sufficiently plead facts for her section 1793.2(a)(3) claim.

Plaintiff makes conclusory allegations that "Defendant failed to make available

to its authorized service and repair facilities sufficient service literature

and replacement parts to effect repairs during the express warranty period."

(Complaint, ¶ 38.) Plaintiff fails to allege any specific facts such as what

the literature Honda failed to provide should have pertained to or the parts at

issue.

Therefore,

the motion for judgment on the pleadings is GRANTED as to the third

cause of action for violation of 1793.2(a)(3). The Court discusses leave to

amend below.

iv.

COA 4: Whether Plaintiff's Implied

Warranty Claim is Properly Plead